



CAPE COD COMMUNITY COLLEGE
2240 IYANNOUGH ROAD
WEST BARNSTABLE, MA 02668-1599

FUNCTION AGREEMENT

CONTACT: Max Makowski ORGANIZATION: 1140- A Company
ADDRESS: P. O. Box 1118 TELEPHONE: 508 375 8737
CITY: Dennis STATE: MA ZIP: 02638 E-MAIL ADDRESS: Max@cape-cod.co
PARTICIPANTS: 649 CCCC FUNCTION: ☐ OUTSIDE AGENCY: ☒

I hereby certify that I will assume all responsibility for equipment and room condition. I understand that all spaces must be fully restored following each event. As the user, I also agree to indemnify, protect defend and hold harmless, Cape Cod Community College, the Board of Trustees of Cape Cod Community College, Board of Higher Education, Commonwealth of Massachusetts and its agents against all claims, suits and actions arising from any act of omission of the User, employees or agents.

SIGNATURE OF PERSON MAKING REQUEST *Max Makowski* DATE July 15th 2026

DESCRIBE FUNCTION: Comedy show

LOCATION(S)		HEAT NEEDED	HEAT ZONE(S)	DAY(S)	DATE(S)	START TIME	STOP TIME
BUILDING	ROOM						
Tilden	Main			Saturday	August 29, 2026	6 PM	10 PM

ROOM SET UP SPECIFICATIONS:

Main theater.

AUDIO VISUAL REQUIREMENTS:

will be arranged by CCCC Tilden Techs

RECOMMEND USE OF PARKING LOT: 1/2 FOOD AND BEVERAGE SERVICE REQUESTED: ☐

PERSONNEL NEEDED: The College reserves the right to require support personnel at some functions. You will be billed accordingly

☒ Administrator ☒ Custodian ☐ Other
☒ Theatre / Media Technician ☐ Security ☐ Energy Surcharge (10/15 - 4/15)

I hereby approve this request as a proper function of Cape Cod Community College

Facilities Use Director:

[Signature]

Date:

7/21/2026

ATTACHMENT A

REVOCABLE LICENSE FOR THE TEMPORARY USE OF COLLEGE PROPERTY

This is a REVOCABLE LICENSE AGREEMENT ("Agreement") by and between the parties specified below for the temporary use of real property pursuant to the following terms and conditions.

1. PARTIES

Licensor: Cape Cod Community College

Address of Licensor: 2240 Iyannough Road, West Barnstable, MA 02668

Licensee: Max Makowski DBA 1140-A Company

Address of Licensee: P.O. Box 1118, Dennis, MA 02638

2. APPLICABLE DATES

This Agreement shall take effect on August 29, 2026, and shall terminate on August 29, 2026 at 10 PM ("License Term"). The Parties reserve the right to extend this Agreement for up to two (2) subsequent License Terms upon written, mutual agreement at least thirty (30) days prior to the date of termination. All terms and conditions of this License shall apply to any extensions thereof.

3. LICENSED PREMISES

The Licensed Premises are shown on the plan(s) or diagram(s) attached to this License as Exhibit A, and as further described as follows: See attached Function agreement.

[Attach plan(s) or diagram(s), marked as Exhibit A, showing location of the Licensed Premises.]

Licensor hereby agrees that Licensee may use the Licensed Premises subject to the terms of this License. This License is granted at the pleasure and discretion of Licensor and is revocable at any time upon written notice from either party to the other. Upon revocation or termination of this License, Licensee shall have no further rights in or access to the Licensed Premises. Licensee acknowledges that Licensee has no property or possessory rights in or to the Licensed Premises except a Revocable License for temporary use of the Licensed Premises as described herein. Licensee shall permit Licensor and its agents to enter and examine the Licensed Premises and perform work therein or thereon, at any time, so long as such work does not materially interfere with the Licensee's use of the Licensed Premises.

The Licensed Premises shall be delivered to Licensee in its "as is" condition and any subsequent improvements to the Licensed Premises by the Licensor shall be upon the mutual, written consent of the Parties. Licensee shall make no alterations, additions or improvements to the Licensed Premises without Licensor's prior written consent, which consent may be granted or withheld in Licensor's sole discretion. Licensee shall vacate the Licensed Premises and return it to Licensor

on the date of expiration or termination of this License in as good condition as upon the initiation of the License Term, reasonable wear and tear excepted. Any damage to the Licensed Premises shall be repaired by the Licensor at the sole expense of the Licensee, who shall reimburse the Licensor in full within thirty (30) days of receipt of an invoice for said repairs. Upon expiration or termination of this License, Licensee shall have no further rights in or access to the Licensed Premises.

4. PERMITTED USES

Licensee shall be authorized to use the Licensed Premises for the following purposes: Comedy show

At no time shall the Licensee be permitted to use or access any other College property without the prior written consent of the College.

5. SCHEDULE OF OPERATION

During the License Term, Licensee is permitted to operate and use the Licensed Premises for the Permitted Uses during the following schedule/times: See attached Function agreement.

6. LICENSE FEE

Except as otherwise provided, Licensee shall pay to Licensor, without notice or demand, and without any set-off, counterclaim, abatement or deduction whatsoever, except as expressly set forth herein, in lawful money of the United States, by unendorsed check or money order or, at Licensor's option, by wire transfer of immediately available funds, a License Fee per attached payment schedule / invoice in equal monthly installments, in advance, commencing on the License Term, and, thereafter, on the first day of each succeeding calendar month during the License Term or any extension thereof, except that the Licensee shall pay the first full monthly installment of the License Fee upon the execution hereof.

The terms of the payment of the License Fee to Licensor are established as follows:

Period	Annual License Fee	Monthly Installment of License Fee	Additional Fee (if any)
See Attached invoice			

During any Renewal Period the License Fee shall be subject to renegotiation by the Parties. If Licensee shall fail to make payment of any installment of License Fees or any other amounts due and payable hereunder within three (3) business days after the date such payment is due, Licensee shall pay to Licensor on demand a late charge equal to percent 2% of the amount of such overdue payment or to the extent permitted under applicable state law.

7. LICENSEE RESPONSIBILITIES

The Licensee, its employees and guests shall comply with all rules and regulations of the Licensor. Employees of the Licensee shall not be considered employees of the Licensor and shall possess

appropriate identification as an employee of the Licensee while on the Licensor's property. Licensee shall fully inform its employees and guests that the Licensor's property, including the Licensed Premises, is a non-smoking facility. Under no circumstances shall the Licensee be permitted to use the Licensed Premises in a discriminatory manner, including excluding individuals from attending events and/or participating in activities on the Licensed Premises based on a protected classification, including, but not limited to, race, sex, gender identity, national origin, disability, age, or sexual orientation.

8. FOOD AND BEVERAGES

To the extent the Licensee provides food or beverages at an event or activity conducted on the Licensed Premises, other than those provided through the Licensor's contracted food service, Licensee shall be solely responsible for obtaining all required permits and licenses, if any, as required by local or state law. No alcoholic beverages shall be available at any event or activity conducted on the Licensed Premises without advanced written permission from Licensor's President or designee.

9. LICENSEE'S CERTIFICATION

Licensee certifies under the pains and penalties of perjury that pursuant to M.G.L., c.62C, §49A, that the Licensee has filed all state tax returns, paid all taxes, and complied with all laws of the Commonwealth relating to taxes; and that pursuant to M.G.L., c.151A, §19A(b), has complied with all laws of the Commonwealth relating to contributions and payments in lieu of contributions to the Employment Security System; and with all laws of the Commonwealth relating to Worker's Compensation, c.152. The Licensee also represents that it is qualified to perform the described services and has obtained all requisite licenses and permits, as may be required, to perform those services.

10. LIABILITY

During the License Term the Licensee shall maintain insurance for personal injury, death and property damage. The minimum terms of such insurance coverage for the Licensed Premises shall be one million dollars (\$1,000,000) per occurrence and three million dollars (\$3,000,000) in the aggregate. The Licensor shall be a named-insured under the Licensee's policy(s) of insurance. The Licensee must provide the Licensor with at least ten (30) days written notice prior to the termination, suspension or modification of such insurance coverage. The Licensee agrees to indemnify and hold the Licensor, its officers, agents, employees, and students harmless for any and all loss, damage suits, claims, costs, expenses, demands, judgments of liabilities of whatsoever kind or nature, arising out of this License and/or attributable to the negligence of the Licensee, its officers, agents, guests, employees or subcontractors.

11. SUCCESSORS AND ASSIGNS; LICENSOR'S LIABILITY

Licensee's rights under this License are for the benefit only of the Licensee named herein. Licensee shall not assign, sublicense, or transfer any of its rights under this License. Licensor may transfer its rights and obligations under this License to a successor owner of the Building.

12. ACCESSIBILITY

During the term of this License, Licensee shall bear all costs associated with the provision of reasonable accommodations, academic adjustments, auxiliary aids or any other services required by any user of the Licensed Premises. Any public notices issued regarding public events hosted by the Licensee on the Licensed Premises shall include a statement that anyone who requires a reasonable accommodation to attend the event should contact the Licensee.

13. MISCELLANEOUS

Any notice given under or in connection with this License shall be effective only if given in writing and shall be deemed duly served if and when hand delivered or if and when mailed prepaid certified mail (in either case, whether or not accepted for delivery) at the address given above. Either party may from time to time designate other addresses within the continental United States by notice of the other. This License contains all the agreements between the Parties with respect to the Licensed Premises and may be amended only in writing by an instrument signed by all of the Parties hereto. No provision of this License shall be deemed to have been waived by either Party unless such waiver is in writing and is signed by the Party to be charged.

14. CONTROLLING LAW

This agreement shall be construed and interpreted in accordance with the laws of the Commonwealth of Massachusetts. All disputes shall be resolved in a court of competent jurisdiction situated in the Commonwealth of Massachusetts.

15. NOTICES

Any notice, statement, demand or other communication required to be given, rendered or made by either party to the other, shall be in writing and shall be deemed to have been properly given, rendered or made, if sent by recognized overnight courier or by registered or certified mail, return receipt requested, addressed to the other party at the other party's address as set forth below and shall be deemed to have been given, rendered or made when received or when delivery is refused.

If to Licensor: <u>Joe MacKinnon</u>	<u>Facilities Use Director</u>
Name	Title
<u>2240 Iyannough Rd, West Barnstable, MA 02668</u>	
Address	

If to Licensee: <u>Max Makowski</u>	
Name	Title
<u>P.O. Box 1118, Dennis, MA 02638</u>	
Address	

Either party may, by notice to the other, designate a different address or addresses for notices, statements, demands or other communications intended for it.

16. PROHIBITION ON POLITICAL FUNDRAISING

...entire premises, including the Licensed Premises.

7. ENTIRE AGREEMENT

This License constitutes the entire agreement between the parties with respect to the Licensed Premises, and may be amended only upon the mutual, written consent of Licensor and Licensee. No provision of this License shall be deemed to have been waived by either party unless such waiver is in writing and is signed by the party to be charged.

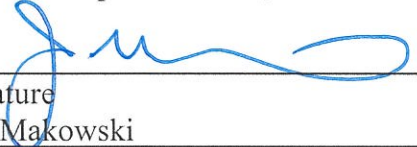
8. TERMINATION

Either party may terminate this Agreement at-will with at least sixty (60) days written notice to the other party. This Agreement may be terminated at-will with no written notice of termination for cause.

9. AUTHORITY TO ENTER INTO LICENSE AGREEMENT

Licensor and Licensee each represent and warrant that they each are duly authorized to enter into this Agreement, and that the person or persons executing this Agreement has or have full authority to do so and to fully bind their respective Parties.

Joe MacKinnon, Facilities Use Director
Licensor Representative, Title

 7/21/2026
Signature Date
Joe MacKinnon

Licensor Representative Title
 July 15th 2026
Signature Date

k rev\master\revocable license-#t